

MA, Xiao

CONTACT	xma@sjd.law.harvard.edu • Cambridge, MA • +1 (617) 800-7091 https://www.maxiao.law	
EDUCATION	Harvard Law School , Cambridge, MA <i>S.J.D.</i> Dissertation: <i>Political Determinants of Bankruptcies in China</i> Research Fields & Supervisors: Bankruptcy and Corporate Reorganization with Mark Roe (Principal); Comparative Corporate Law with Reinier Kraakman; China's Political Economy with Mark Wu Fellowships & Grants: Graduate Program Fellow; Cravath International Summer Travel Grants; Conference Travel Grants; Fairbank Center Graduate Conference Grant; Mercatus Fellow (GMU); Fairbank Center Graduate Student Associate; Visiting Scholar at SMU, Texas A&M Law (2024-2026) Research Assistant to William Alford, Howell Jackson, Mark Roe Teaching Fellow , Bankruptcy (Spring 2022, Fall 2022) HLS Bankruptcy Roundtable - Chief Editor: Crypto-Bankruptcy Series	2021 – 2027 (expected)
	Harvard Law School , Cambridge, MA <i>LL.M.</i> F.Y. Chang Scholar; RA to Mark Roe; Editor to Harvard International Law Journal Honors Thesis on Intragroup Guarantees and Complications in Bankruptcy	2016
	University of Oxford , St. Hilda's College <i>Magister Juris</i> China Oxford Scholar; Distinction in Public International Law	2012
	Beijing Foreign Studies University <i>LL.B. and B.A. in English</i> National Scholarships; Honors Thesis; Chief Editor to “ <i>kanfa</i> ” (BFSU Law Review)	2011
RESEARCH INTERESTS	Primary: Bankruptcy and Corporate Reorganization; Corporate Law; Chinese Law; Law and Political Economy; Comparative and Empirical Legal Studies Secondary: Commercial Arbitration; Cross-Border Insolvency; Sovereign and Municipal Debt; Distressed Investing	
WORKING PAPERS	<i>State-in-Possession: Big Firm Reorganizations in China</i> (working paper; invited presentations at Wharton-Chicago-Harvard Insolvency and Restructuring Conference, Harvard Asian Law Junior Scholar Workshop, NBLSC, Duke, Oxford, ASCL, Texas A&M, Cambridge Chinese Politics Workshop) <i>Allocating Loss: Municipal Bankruptcy and Fiscal Discipline in China</i> (working paper; invited presentation at AAS, LSA, Sciences Po, ACPS, ALSA, ASCL) <i>Bankruptcy as State Policy</i> (working paper; invited presentation at Stanford)	

ONLINE PUBLICATIONS	<u>Crypto-Bankruptcy Series: Concluding Thoughts</u>, <u>China Continues to Issue New Rules in Promotion of Corporate Rescue Culture</u>, <u>Tribune II: Law Firm Perspectives</u>, <u>Ultra III: Law Firm Perspectives</u>, Harvard Law School Bankruptcy Roundtable. <i>China NPL Investors Call US-China Trade Deal 'Positive' Development</i> (with Shasha Dai), <i>PKU Founder Group's PRC Bankruptcy Process Likely to Trigger Defaults</i> (with Jeff Burton and James Shi), <i>China's Yet-to-Be-Unveiled Personal Bankruptcy Law Poised to Affect Value of Debt Guarantees</i>, Reorg.
EXPERIENCE	Harvard Law School, Cambridge, MA 2019 – 2021 <i>Bankruptcy Fellow; Visiting Scholar at East Asian Legal Studies</i> • Teaching Fellow to Bankruptcy course (Fall 2019 & Fall 2020) • Editor and Coordinator, HLS Bankruptcy Roundtable • Research Assistant to Ko-Yung Tung on International Investment Arbitration Reorg (Octus), Hong Kong/New York 2019 – 2020 <i>China Analyst</i> • Published analysis on China's NPL market, bankruptcy law reform, personal bankruptcy law, and PKU Founder Group's cross-border default; • Co-hosted webinar on developments in China's bankruptcy law. Kirkland & Ellis, Hong Kong 2016 – 2019 <i>Restructuring / Litigation Associate</i> • Acted as lead associate in all China-related matters, responsible for client interfacing, drafting of legal opinions, court filings, internal reports, restructuring support agreements, and schemes of arrangement; • Advised clients on cross-border litigation, liability management and debt restructuring matters. Fangda Partners, Shanghai 2012 – 2015 <i>Dispute Resolution Associate</i> • Acted as lead associate in dispute resolution, commercial litigation and arbitration, bankruptcy and restructuring, general corporate matters; • Drafted court and tribunal submissions, presented cases at proceedings; • Seconded to Ermenegildo Zegna as its sole legal counsel for the Greater China Region. SJ Berwin LLP (King & Wood Mallesons), London 2012 <i>Summer Vacation Scheme</i> MWE China Law Offices (McDermott Will & Emery), Shanghai 2010 <i>Summer Associate</i>
BAR & COMMUNITY	Bar Admissions: China (2013); New York (2017) Alumnae-I Network for Harvard Women, Boston Advisory, Dallas President (2025-26) UTSW Faculty Women's Club, Board Member & Chair (2024-26) Ian Fletcher Cross-Border Insolvency Moot, Coach (2025-26) Association of Asian Studies, Annual Meeting, Panel Organizer (2026) Law & Society Association, Annual Meeting, Panel Chair & Discussant (2025)